



STANDING ORDER NO. L&O/77/2024

GUIDELINES FOR HOLDING 'JAN SUNWAI'

1. INTRODUCTION

District policing largely remains focused on the two basic duties of prevention and detection of crime and maintenance of law and order. Persistent focus on these two macro aspects of policing often dilutes the attention required on the micro aspect of handling of complaints, many of which may not warrant actual recourse to penal laws for their solution.

Though a mechanism for handling complaints, in the form of ICMS exists, more often than not, complainants end up rather dissatisfied due to delays in completion of the enquiry, perceived lack of transparency, non-involvement of complainant during the different stages of enquiry except for a formal recording of statement and non-communication of the outcome of the enquiry proceedings. In order to bring about qualitative change towards complaint resolution, it is felt necessary that the existing unstructured system of Jan Sunwai at District level be upgraded and made an institutional best practice.

2. NATURE OF COMPLAINTS TO BE ASSIGNED FOR 'JAN SUNWAI'

- i. Where the content of the complaint relates to public order or traffic-related issues,
- ii. Where the content of the complaint does not disclose cognizable offence, but warrants police intervention or escalation to other Civic agencies for appropriate redressal.
- iii. Where the content of the complaint pertains to issues which may arise during the investigation of criminal cases like release of vehicles/articles, addition of more sections of offence, etc.

3. NATURE OF GRIEVANCES TO BE ASSIGNED FOR 'JAN SUNWAI'

- i. Where the complainant is not satisfied with either the process or the outcome of enquiry, or
- ii. Where the enquiry is allegedly getting delayed at the part of the EO for no specific reason, or

- iii. Where the allegation is that the complaint has not been assigned to any Enquiry Officer after one week of its physical or electronic receipt.

4. INTEGRATED COMPLAINTS MONITORING SYSTEM (ICMS)

All complaints which do not lead to the registration of a criminal case or where a criminal case is not likely to be registered without first an enquiry being conducted, are to be compulsorily entered in ICMS System. The earlier practice of categorizing complaints into 'local complaints' i.e., received in Police Stations directly from complainant(s) or aggrieved and complaints received from the higher offices, including VIP, Timed, CPGRAMS etc., shall come to an end, and all types of complaints received in the Police Station or Police Posts (within a Police Station) shall be uploaded on ICMS without fail and Enquiry Officers shall be assigned on each and every complaint within 24 hours of uploading on ICMS.

Once a complaint is uploaded on the ICMS portal, a message shall be pushed to the complainant's registered phone number through auto-generated SMS informing that in case he fails to receive information about the outcome of the enquiry within the next 15 days, he can join Jan Sunwai to be held in ACP/SDPO office on Saturday which comes after the expiry of 15 days at 10 AM. Complaints uploaded on the ICMS 'only' shall be taken up in Jan Sunwai. Disposal of any complaint reported as directly received and not entered into ICMS shall not be taken into consideration while preparing statistical reports pertaining to the performance of Jan Sunwai at District Level. Standard SMS format is placed as **Annexure- A**.

5. PERIODICITY

Jan Sunwai shall be held every Saturday, under the supervision of ACsP/SDPOs. Both the petitioner as well as the respondent should be informed well in advance to attend the Jan Sunwai at the scheduled date and time. ACP/SDPO are at liberty to rotate the venue of weekly Jan Sunwai between different Police stations under their jurisdiction.

6. AWARENESS AND PUBLICITY

General public should be made aware of Jan Sunwai by making through social media and chat groups of RWAs, MWAs etc. Notice Boards of Police Stations shall also display information regarding the schedule of Jan Sunwai.

7. TIMINGS

The Jan Sunwai should ideally start at **1000** hrs. and continue up to **1400** hrs. However, concerned DCP/ACP can adjust the timings as per their operational commitments.

8. PRESENCE OF OFFICERS DURING JAN SUNWAI

Apart from the ACP, SHOs or Inspectors (Investigation) and EOs, with whom Jan Sunwai references are pending, shall remain present during the hearing. Jan Sunwai will be effective only when concerned EO remains present. Where the EO is engaged in any unavoidable duty, date of Jan Sunwai can be accordingly adjusted.

It must be kept in mind that during the handling of Jan Sunwai references, the Enquiry Officer (EO) has to perform the duties more in the nature of a Complaint Resolution Officer rather than treating the 'alleged' persons as accused and complainant as victim. The basic approach in handling Jan Sunwai reference should be securing an amicable resolution of the issue at hand.

9. Role of DCsP Districts

Jan Sunwai is an institutional intervention at Sub Division level. District DCsP should make endurance to remain physically present to observe, participate and encourage Jan Sunwai at their ACP/SDPO offices. In any situation, at least one of their DCP level officer should be present every Saturday for supervising Jan Sunwai hearing.

10. SUPERVISION

The ACsP and Sub-Division shall compile police station- wise statistics relating to the number of complaints taken up and the number of complaints resolved during the weekly exercise. Each complaint shall have a proforma index as per **Annexure-B** so as to record the facts of each hearing, along with a column for the remarks of the complaint resolution officer (Enquiry Officer). This shall act as a ready reference for EOs to record and progress of all complaints.

11. RECORD KEEPING

The number of complaints pending or taken up in Jan Sunwai and disposed of during the weekly exercise shall be compiled at the end of the exercise. Police Station and Sub-Division-wise figures of the results achieved shall be conveyed by all SHOs and ACsP/Sub-Division to concerned DCsP. All District DCsP shall send a 'Weekly Diary' of the Jan Sunwai held in their District on the format as per **Annexure-C** on every Monday to Vigilance Branch, PHQ and concerned Addl. or Joint CP, Range.

Vigilance Division shall conduct surprise check of Jan Sunwai being held at Sub-Division level every Saturday by issuing internal duty roster. A confidential report, for perusal of the Commissioner of

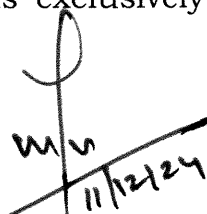
Police, Delhi then be submitted by Spl. CP/Vigilance on a monthly basis reflecting upon the quality of exercise being held at Sub-Division level. It is the responsibility of concerned District DCsP to intimate well in advance about the venue of Jan Sunwai under their District Jurisdiction to Vigilance Division.

12. SUPERSESION CLAUSE

This Standing Order supersedes the previous Standing Order No. L&O/77/2022 issued vide Order No. 43851-44000/Record Branch/PHQ dated 06.06.2022.

13. DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.


(SANJAY ARORA)
**COMMISSIONER OF POLICE:
DELHI**

No. 13901 - 14050 /Record Branch/PHQ dated Delhi, the 11/12/2024

Copy forwarded to: -

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi.
10. HAR/PHQ.
11. Inspr./Knowledge Center/PHQ.

SMS for Jan-Sunwai

Proposed SMS- JS
Dear _____, reference to your petition number: _____ at Police Station _____. In case you don't receive any update of your enquiry by dd/mm/yyyy, you are requested to attend Jan-Sunwai of ACP/Sub-division on dd/mm/yyyy at 10:00 AM. Regards Police Station _____.

Annexure-B**JAN SUNWAI REPORT**
(See SO No. L&O/77/2024)

Police Station: _____

Sub-Division: _____

Request for Jan Sunwai received in the office of DCP, ACP, SHO	No. _____ Date _____
ICMS No.	
Name & Address (Phone) of Complainant.	
Name & Address (Phone) of Alleged, if any.	
Nature of Complaint	
Enquiry Officer (E.O.) (Insp./SI/ASI)	
Asstt. Enquiry Officer (ASI/HC/Ct.)	

Parties Appeared

S.No.	DATE	ACTION TAKEN (To be filled -in-by EO or AEO)
1.		
2.		
3.		
Response of the complainant		

Remarks of SHO:**Remarks of ACP:**

Annexure- C

WEEKLY DIARY OF JAN SUNWAI

District: _____

Week Ending: _____

Sub- Unit	No. of Requests Received for Jan Sunwai during the Week	No. of matters taken up in the Jan Sunwai	No. of matters Resolved in the Jan Sunwai	No. of matters kept pending in the Jan Sunwai	Remarks, if any
District HQ/PG Cell					
Sub- Div -1					
Sub- Div -2					
Sub- Div -3					
Sub- Div -4					
Sub- Div -5					
Total					

DCP/Vigilance

DCP/ _____

Joint CP/Range